

HOUSE No. 4676

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 3, 2025.

The committee on the Judiciary, to whom was referred the petition (accompanied by bill, House, No. 1967) of Jeffrey N. Roy relative to tort actions for latent diseases, reports recommending that the accompanying bill (House, No. 4676) ought to pass [Representatives Berthiaume of Spencer and Sullivan-Almeida of Abington dissent].

For the committee,

MICHAEL S. DAY.

HOUSE No. 4676

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to tort actions for latent diseases.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Section 2B of chapter 260 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in line 4, the words “thirty-nine A of chapter
3 seven” and inserting in place thereof the following words:- 39A of chapter 7.

4 SECTION 2. Said section 2B of said chapter 260 is hereby further amended by striking
5 out, in line 5, the words “only within three years next” and inserting in place thereof the
6 following words:- within 3 years.

7 SECTION 3: Said section 2B of said chapter 260 is hereby further amended by striking
8 out, in lines 6 to 7, inclusive, the words “in no event shall such actions” and inserting in place
9 thereof the following words:- , except for tort actions for damages due to latent diseases caused
10 by exposure to toxic substances including, but not limited to, asbestos, such actions shall not.

11 SECTION 4. Said section 2B of said chapter 260 is hereby further amended by striking
12 out, in line 7 the number “six” and inserting in place thereof the following number:- 6.

13 SECTION 5. Said section 2B of said chapter 260 is hereby further amended by striking
14 out, in lines 14 to 15, inclusive, the words “thirty-nine A shall be commenced only within three
15 years next” and inserting in place thereof the following words:- 39A shall be commenced within
16 3 years.

17 SECTION 6. Said section 2B of said chapter 260 is hereby further amended by striking
18 out, in lines 15 to 16, inclusive, the words “in no event shall actions be commenced more than
19 six” and inserting in place thereof the following words:- , except for tort actions for damages due
20 to latent diseases caused by exposure to toxic substances including, but not limited to, asbestos,
21 such actions shall not be commenced more than 6.

22 SECTION 7. Said section 2B of said chapter 260 is hereby further amended by striking
23 out, in line 20, the words “chapter thirty, section thirty-nine G” and inserting in place thereof the
24 following words:- section 39G of chapter 30.

25 SECTION 8: Sections 1 to 7, inclusive, shall be effective for all causes of action accruing
26 before, on, or after the date of enactment, including any pending causes of action.